

Court No. - 21

Case :- WRIT - C No. - 13593 of 2023

Petitioner :- Shyam Sundar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sangam Singh, Mohan Kant Baghel

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed praying for quashing of order of provisional assessment dated 09.01.2023 issued by respondent No. 4 in a case of alleged theft of electricity by the petitioner. The petitioner has also prayed for a writ of mandamus commanding the respondent authority to restore the electric supply to his premises forthwith.

The case of the petitioner is that he has filed objection against the order of provisional assessment but the respondents without finalizing the assessment proceedings have proceeded to disconnect the electricity supply.

Learned counsel for the respondent electricity department on instruction states that the department has fixed 08.05.2023 as date for hearing the petitioner in respect of assessment proceedings. He further states that the electric supply will be restored within 24 hours.

Accordingly, the petition is disposed of by providing that the respondents shall restore the electric supply to the petitioner's premises within 24 hours.

Counsel for the respondent electricity department will communicate the said direction to the authorities for immediate compliance. The respondents shall finalize the assessment

proceedings strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.4.2023

Jaswant